

CAPITAL ONE BANK (USA), N.A. v. PARK

21CF13686

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a collections case. Before the Court is a statutory motion for judgment on the pleadings, filed by the plaintiff. The proof of service indicates that defendant was timely served with the motion, though no opposition has been filed.

This Court first notes a defect with counsel's attempt to exhaust the statutory meet and confer requirement for this motion, as set forth in CCP §439. Pursuant thereto, counsel's supporting declaration must demonstrate that defendant "failed to respond to the meet and confer request or otherwise failed to meet and confer in good faith." (CCP §439(a)(3)(B).) Counsel's declaration provides only that he placed one phone call, and elected not to leave a message when nobody answered the phone. That is hardly compliant with the spirit, if not the letter, of the statute. The statute specifically provides that if the parties are unable to meet and confer at least 5 days prior to the filing of the motion, the moving party shall be granted an automatic 30-day extension of time to continue meet and confer efforts. (CCP §439(a)(2).) Given the nature of the request made in this motion, a better effort to work with defendant is required.

This Court further notes that the motion as framed is imprecise. Pursuant to CCP §438(c), a motion for judgment on the pleadings brought by the plaintiff can only be granted if (1) the complaint states facts sufficient to constitute a cause of action against the defendant and (2) the answer does not state facts sufficient to constitute any defense thereto. The answer filed on 02/14/22 does not raise any affirmative defenses, and only prays that plaintiff take nothing. Thus, the propriety of the motion turns entirely on whether the Complaint – standing alone – demonstrates an indebtedness presently owing and overdue. (See *Kawasho Internat., U.S.A. Inc. v. Lakewood Pipe Service, Inc.* (1983) 152 Cal.App.3d 785, 793.) To determine if the facts stated are alone sufficient, it is necessary to consider each count. An **open book** is a detailed statement constituting the principal record of transactions between a debtor and creditor arising out of a contractual relationship between the two. (CCP §337a.) The complaint does not attach or incorporate any current billing statement showing the amount due and the lateness thereof. An **account stated** requires an agreement between the parties as debtor/creditor regarding an amount due and a promise of repayment. (See *Gleason v. Klamer* (1980) 103 Cal.App.3d 782, 786; *H. Russell Taylor's Fire Prevention Service, Inc. v. Coca Cola Bottling Corp.* (1979) 99 Cal.App.3d 711, 726.) The complaint does not attach the credit card agreement. An action for **money had** lies in cases where one person has in his possession money which in equity and good conscience he ought to pay over to another. (*Provident Mut. Building v. Davis* (1904) 143 Cal. 253, 256;

Farmers Ins. Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460.) Where the party seeking money has a contractual obligation that is still executory, he cannot plead a cause of action for money had (*Ferrero v. Citizens of National Trust and Savings Bank of Los Angeles* (1955) 44 Cal.2d 401, 409), and there is no averment that the agreement was rescinded or otherwise no longer executory.

This is not to say that the operative pleading must be amended to perfect the motion. What needs to happen is a proper effort to meet and confer on the motion, proof to this Court's satisfaction that defendant is aware of what is going on, and some points and authorities on the topic. Motion is DENIED, without prejudice to refile a motion providing a proper basis for the Court to rule on the merits.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order pursuant to Rule of Court 3.1312 is required; however, defendant is ordered to personally serve defendant with this ruling as well.

GOLD CREEK ESTATES v. VALLEY SPRINGS GOLD CREEK

17CV42103

DEMURRER AND MOTION TO STRIKE

This is a construction defect action involving allegations of negligent design and implementation of common areas within a condominium complex. It took many iterations to finally reach a pleading that meets the standard of clarity and precision set forth in CCP §425.10(a)(1), but this 4th Amended Complaint finally passes muster. Nevertheless, defendants continue in their quest to help plaintiff build the perfect pleading by directing a demurrer and motion to strike at this now-operative pleading.

The operative pleading presently includes the following six causes of action: statutory Right to Repair Act; breach of written sales contracts; intentional concealment/nondisclosure, negligent nondisclosure, intentional misrepresentation, and negligent misrepresentation. Defendants contend that the nondisclosure and misrepresentation claims fail to include the requisite degree of particularity, and further that the misrepresentation claims are not well-pled because they relate to future events. Defendants separately move to strike references to punitive damages, which in general will rise or fall along with fraud claims.

CCP §430.41

Despite this Court's directive regarding the meet and confer requirement for pleading motions (see Ruling dated 05/20/22), the parties still refuse to "meet and confer in person or by telephone." Lawyering is a profession, one purpose of which is to guide individuals too personally entrenched in the dispute to rise above pettiness and hone in on what matters. In reviewing the lengthy letters back and forth between counsel, what started out as an attempt to "identify with legal support the basis of the deficiencies" and address ways "to cure any legal insufficiency," soon metastasized into disappointing name-calling. It is not the number of letters back and forth that make up a good faith meet and confer effort – it is the effort itself. Nevertheless, sending the parties to an actual conference room table would, in this Court's opinion, bear no fruit worth savoring.

Fraud-Based Particularity

Defendants contend that plaintiff has still not provided sufficient facts to support the essential element of scienter attendant the Fourth (concealment), Fifth (nondisclosure), Sixth (intentional misrepresentation), or Seventh (negligent misrepresentation) causes of action. As previously observed, this type of contention could, in theory, go on forever since plaintiff could never truly insert itself into defendants' subconscious to plead facts regarding scienter and intent without taking some leaps of faith.